



## Notification Waiver Determination

### Gunvor Group – ZEN Energy Retail Holdings

|                              |                                                                                                                                                                                                                                                                                                                                                                                                                          |
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| <b>Acquisition</b>           | Gunvor Group Ltd applied for a notification waiver in respect of its (or a wholly-owned Australian subsidiary nominated by Gunvor Group Ltd) proposed acquisition of 100% of the issued share capital of ZEN Energy Retail Holdings Pty Ltd (the <b>Target</b> ) from ZEN Energy Retail Pty Ltd ( <b>ZER</b> ), as described in the transaction documents provided as part of the application (the <b>Acquisition</b> ). |
| <b>Determination</b>         | The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.                                                                                                                                                                                                                   |
| <b>Date of determination</b> | 24 June 2026                                                                                                                                                                                                                                                                                                                                                                                                             |

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| <b>Parties to the Acquisition</b> | <p>The acquirer, Gunvor Group Ltd, is the main holding company of the Gunvor Group (<b>Gunvor</b>), a global commodity trading house that is registered in Cyprus and has an energy trading business. While Gunvor does not currently operate a physical business in Australia, it is a supplier of fuel to Australian fuel importers and a participant in the wholesale electricity derivative contracts market within the National Electricity Market (<b>NEM</b>). Gunvor is not involved in the wholesale generation, or the retail supply, of electricity in the NEM or elsewhere in Australia, and it does not own or control any operating energy generation assets or infrastructure.</p> <p>ZER (and its affiliates, together the <b>ZEN Energy Group</b>) is an Australian renewable energy company which supplies electricity to large use customers across the NEM. The ZEN Energy Group operates two business units: a retail customer business with an associated hedging portfolio, and an asset development program. Its hedging portfolio primarily comprises long-term wholesale derivative contracts, including power purchase agreements (<b>PPAs</b>) with renewable generators, and tolling leases over operating battery energy storage systems (<b>BESS</b>).</p> <p>The Target, which has been newly incorporated for the purpose of the Acquisition, will hold the assets relating to the ZEN Energy Group's retail business, including all of ZER's retail electricity supply customer contracts and a hedging portfolio consisting of three PPAs (relating to the Tailern Bend 2 Hybrid Project, New England Solar Farm and Moree Solar Farm) and a virtual toll, energy storage services agreement and other synthetic battery offtake agreement in respect of the Templers BESS facility, together with employees, intellectual property, licences, and IT systems. Prior to completion, ZER will transfer the assets within the sale perimeter to the Target.</p> <p>The Acquisition is limited to the ZEN Energy retail business and three PPAs and the tolling agreement within its hedging portfolio, and</p> |
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|                                      | does not include the asset development business unit owned by Zen Energy Pty Ltd or the remainder of the hedging portfolio.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>Explanation for determination</b> | <p>In making this notification waiver determination, the Australian Competition and Consumer Commission (the <b>ACCC</b>) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the <b>Act</b>).</p> <p>Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular:</p> <ul style="list-style-type: none"> <li>a. there is no horizontal overlap between Gunvor and the Target in the retail supply of electricity to large use customers in the NEM</li> <li>b. post-Acquisition Gunvor's share in the acquisition of wholesale derivative contracts for renewable energy and battery storage assets in the NEM and in Queensland, NSW, Victoria, South Australia and Tasmania is estimated to be low</li> <li>c. there are numerous alternative retail suppliers of electricity to large use customers, and alternative acquirers of wholesale derivative contracts for renewable energy and battery storage assets in the NEM and across Australia</li> <li>d. there appears to be a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition.</li> </ul> <p>The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply.</p> <p>While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified.</p> <p>The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition.</p> <p>For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's <a href="#">interim guidance on notification waivers</a> and <a href="#">merger assessment guidelines</a>.</p> |

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act**